

PREVENTION OF SEXUAL HARASSMENT IN WORKPLACE

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INTRODUCTION

Swaniti Initiative (“**Organization**”) believes in the personal dignity of all individuals and for this reason, promotes an equal and healthy Workplace (*as defined below*) for all its Employees/Consultants (“**Individuals**”) and (*as defined below*). Consistent with this belief, the Organization considers it important to ensure an organizational environment free from discrimination and harassment with a particular focus on Sexual Harassment (*as defined below*) of any kind, whether verbal, physical, or visual. This Prevention of Sexual Harassment at Workplace Policy (“**Policy**”) always mandates the prevention and prohibition of Sexual Harassment by any Individuals and provides a brief of the conduct that will not be tolerated and a procedure for inappropriate conduct, if encountered by any Individual, will be strictly handled.

This Policy reflects the Organization’s commitment to ensure that Sexual Harassment (*as defined below*) of Individuals (*as defined below*) occurs at the Workplace (*as defined below*) or in other settings in which Individuals (*as defined below*) may find themselves in connection with the Workplace (*as defined below*) is unlawful and will not be tolerated by the Organization. Therefore, the Organization considers it the responsibility of every Individual (*as defined below*) of the Organization at Workplace (*as defined below*) to conduct himself/ herself in a manner that contributes to an environment free of Sexual Harassment (*as defined below*).

OBJECTIVE

This Policy provides guidelines for prompt redressal of complaints related to Sexual Harassment (*as defined below*) and for compliance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition& Redressal) Act, 2013, and rules thereunder. All references/ complaints about any complaints of Sexual Harassment (*as defined below*) shall be handled within the ambit of the said Act. This Policy applies to all Individuals irrespective of gender and/ or sexual orientation.

The Organization is committed to implementing best practices that will promote a healthy work environment free from Sexual Harassment (*as defined below*). Therefore, the objective of this Policy is to:

- a) Create a work environment where all Individuals (*as defined below*) are treated with dignity and respect;
- b) Promote awareness about Sexual Harassment (*as defined below*);
- c) Provide a prompt and effective redressal mechanism in responding to Sexual Harassment complaints;
- d) Maintain confidentiality of the Complainant and/ or related matters of the complaint;
- e) Not tolerate retaliation/ intimidation against Complainants and/ or individuals cooperating with an investigation of a complaint;
- f) Create a non-hostile (conducive) environment.

DEFINITIONS

- 1) **Act:** means Sexual Harassment of Women at Workplace (Prevention, Prohibition & Redressal) Act, 2013
- 2) **Aggrieved Person:** means a person, including an Individuals concerning Workplace (*as defined below*) whether employed or not, who alleges to have been subject to any act of Sexual Harassment by the Respondent (*as defined below*).
- 3) **Complainant:** A Complainant may either be: (a) the Aggrieved Person; and/ or (b) a person (as permitted under the Act and as detailed under the Section- Detailed Procedure for Complaint Redressal Mechanism) who makes a complaint on behalf of an Aggrieved Person.
- 4) **Individual(s):** For this Policy, Individual shall mean and include any person, irrespective of gender and/ or sexual orientation, employed at a Workplace (as defined below) for any work on regular, temporary, ad-hoc or daily wage basis, either directly or through an agent, including a contractor, with or, without the knowledge of the Organization (in the capacity of a principal employer), whether for remuneration or not, or working voluntarily or otherwise, whether the terms of employment/ consultancy are expressed or implied and includes a salaried employee, co-worker, contract worker, probationer, trainee, apprentice or called by any other such name.
- 5) **Harasser/ Respondent:** means a person against whom the Aggrieved Person has made a complaint as per the Act, as elaborated further in this Policy.
- 6) **Internal Committee/ Committee:** means the Internal Committee constituted by the Organization as per the Act and as detailed hereunder in this Policy.
- 7) **Sexual Harassment:** "Sexual Harassment" includes, but is not limited to, any unwelcome, sexually determined behaviour, direct or by implication, and includes any physical contact and advances, a demand or request for sexual favors, making sexually coloured and unsavoury remarks, showing pornography, any other unwelcome physical (for example, touching or brushing against any part of the body and the like, etc.), verbal or non-verbal conduct having sexual overtones. For this Policy "Sexual Harassment" shall include, but will not be limited to the following:
 - a) Unwelcome sexual advances (whether or not involving physical contact);
 - b) Stalking, unwanted and persistent (explicit or implicit) propositions and social invitations to engage in sexual activity;
 - c) Unwelcome looking, whistling, brushing against an Aggrieved Person's body, sexual gestures or facial expressions (explicitly or implying) of a sexual nature;
 - d) Requests for sexual favours, and/or verbal or physical conduct of a sexual nature made, either explicitly or implicitly, whether in return for a term or condition of instruction, employment, participation or evaluation of a person's engagement in any Organization activity;
 - e) Unwelcome sexual advances and/ or verbal, non-verbal, or physical conduct such as loaded comments, remarks or jokes, letters, phone calls or through mobile or e-mail, SMS, MMS, gestures, showing of pornography, lurid stares, physical contact or molestation, stalking, sounds or display of a derogatory nature whether made on an Aggrieved Person's body or not, have the purpose or

Address: 11/11 Sarva Priya Vihar, Hauz Khas, Delhi -110016

Email: uma.b@swaniti.org

Contact: +91 9810522262

- effect of interfering with an individual's performance or of creating an intimidating, hostile or offensive environment;
- f) Displaying sexually suggestive objects, pictures, cartoons, graphics, photographs, posters, calendars, or any other related material;
 - g) Forcible physical touch or molestation, sexual assault, eve teasing, innuendos and taunts, physical confinement against one's will, and any other act likely to impinge upon one's privacy;
 - h) Remarks about sexual activities, speculation about sexual activities, questioning/ interrogation regarding the sex life of a person
 - i) Behaviour that is based on consensual relationships, mutual attraction, friendship, genuine appreciation/ compliment on appearance, dress, style, etc., and respect will not be classified as Sexual Harassment.
 - j) Personal comments on an individual's social media handles; or inappropriate emoji, sexist jokes, or messages.
- 8) **Workplace:** For this Policy, Workplace includes, without limitation: (a) any department, organization, undertaking, establishment, enterprise, institution, office, branch, or unit that is established, owned, controlled, or wholly or substantially financed by the funds provided directly or indirectly by the Organization; (b) any place visited by the Individuals arising out of or during such Individuals employment/ consultancy with the Organization including transportation (if any) provided by the Organization for undertaking such a journey; (c) Individual's home and/ or any other place from where the Individual undertakes his/ her course of employment with the Organization, whether or not the Individual's home and/ or such place is directly or indirectly funded by the Organization and whether or not the Organization is aware of such location from where the Individual is undertaking his/ her course of employment/ consultancy with the Organization.

CONFIDENTIALITY

All complaints of Sexual Harassment will be kept and treated as confidential to the extent practicable under the circumstances. Only those Individuals who may have received the complaint or are necessarily involved in the investigation and decision-making process will be provided access to the information. All information regarding the complaints will be maintained confidentially by the Organization.

SEXUAL HARASSMENT CIRCUMSTANCES

Sexual Harassment can occur in a variety of circumstances, including but not limited to the following:

- a. Implied or explicit promise of preferential treatment in employment/ consultancy; or
- b. Implied or explicit threat of detrimental treatment in employment/ consultancy; or
- c. Implied or explicit threat about present or future employment/ consultancy status; or
- d. Interference with work or creating an intimidating offensive or hostile work environment; or

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Email: uma.b@swaniti.org

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- e. Humiliating treatment is likely to affect health or safety.

The Harasser's conduct must be unwelcome. Harassment can occur in person, over the phone (including voice mail), over the internet, or e-mail and/ or any other form of communication.

INDIVIDUAL'S RESPONSIBILITIES

Provided below is an indicative list of responsibilities for an Individual. All Individuals shall be responsible and be obligated to:

- a. Become fully informed about and compliant with this Policy;
- b. Attend training/ awareness sessions to be better informed about Sexual Harassment;
- c. Inform where the Individuals or someone they know (with the consent of the Aggrieved Person) is experiencing Sexual Harassment at the Workplace;
- d. Make it clear to the Respondent if the behavior is unwelcoming and it offends or creates discomfort;
- e. Offer support to the Aggrieved Person who they suspect is being harassed;
- f. Refrain from spreading any kind of rumor about any instance of Sexual Harassment;
- g. Maintain confidentiality regarding any aspect of the investigation to which they may be party.

INTERNAL COMMITTEE

The Internal Committee has been constituted of the following members as nominated by the Organization:

- a. A woman Individuals employed at a senior level amongst the Individuals shall act as Presiding Officer of the Committee.
- b. Not less than 2 (two) members from amongst Individuals preferably committed to the cause of women or who have had experience in social work or have legal knowledge concerning Sexual Harassment.
- c. 1 (one) member shall be from amongst non-governmental organizations or associations committed to the cause of women or a person familiar with the issues relating to Sexual Harassment.

For details of Committee members please see Annexure 1.

INTERNAL COMMITTEE RESPONSIBILITIES

All complaints of Sexual Harassment or discrimination will be treated seriously and the Committee will ensure that:

- a. An appropriate investigation of complaints of Sexual Harassment is conducted.
- b. Ensure prompt redressal of any complaint as per the timelines provided in the Act.
- c. No reprisal or retaliatory action is taken or tolerated against the Complainant, including the Aggrieved Person.
- d. The sensitive nature of the complaint and the respective position in the Organization of

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the concerned parties are taken into consideration during the investigation. Further, to the extent possible, during the inquiry procedure, the concerned parties should be called separately to ensure freedom of expression and an atmosphere free of intimidation.

- e. Fair process and principles of natural justice are followed.
- f. Special care is taken to ensure that no information regarding the complaint, the identity and addresses of the Aggrieved Person/ Respondent, witnesses, any information relating to the inquiry proceedings, conciliation, or recommendations made by the Internal Committee and the action taken by the Organization is published or communicated or made known to the public, press or media in any manner.
- g. Information may be disseminated regarding justice secured by any victim under this Policy without disclosing the name, address, identity, or any other particulars of the aggrieved victim/ witnesses which may lead to their identification.

DETAILED PROCEDURE FOR COMPLAINT REDRESSAL MECHANISM

Any Aggrieved Person may make, in writing, a complaint of Sexual Harassment at Workplace to the Committee giving details of the Sexual Harassment meted out to her/him within 3 (three) months from the date of incident and in case of a series of incidents, within 3 (three) months from the date of last incident, which may be extended for a further period of 3 (three) months, if circumstances warrant such extension in the opinion of the Internal Committee.

The presiding officer or any member of the Internal Committee can render reasonable assistance to the person, including the Aggrieved Person for making a complaint in writing, in case they are unable to do so. On receipt of the complaint, the Internal Committee shall decide the date, place, and time for hearing the complaint and shall intimate the date, time, and place of hearing to the Complainant, including the Aggrieved Person and Respondent. The Internal Committee shall follow principles of natural justice while handling such complaints.

Where the Aggrieved Person is unable to make a complaint:

- a. Because of their physical incapacity, a complaint may be filed by: (a) a relative or friend; (b) a co-worker; (c) an officer of the National Commission for Women or State Women's Commission; or (d) any person who knows about the incident, with the written consent of the Aggrieved Person.
- b. on account of their mental incapacity, a complaint may be filed by: (a) a relative or friend; (b) a special educator; (c) a qualified psychiatrist or psychologist; (d) the guardian or authority under whose care they are receiving treatment or care; or (e) any person who knows about the incident jointly with any of the above.
- c. Where the Aggrieved Person for any other reason is unable to make a complaint, a complaint may be filed by any person who knows about the incident, with their written consent.
- d. Where the Aggrieved Person is dead, a complaint may be filed by any person who knows about the incident, with the written consent of the legal heir of the Aggrieved Person.

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Internal Committee on receipt of such written complaint, may, if required ask the Aggrieved Person to furnish additional information about the alleged Sexual Harassment. The Complainant/ Aggrieved Person or person authorized on the Complainant/ Aggrieved Person's behalf, shall make a complaint to the Internal Committee by providing a copy of the complaint in writing (emails included) along with all supporting documents, names, and addresses of witnesses (if any) to the Internal Committee at **icc_posh@swaniti.org**:

The Internal Committee shall follow the below-provided steps in investigating and disposing of the complaints received:

- a. On receipt of such complaints, the Internal Committee shall provide a copy along with supporting documents of such complaints to the Respondent within 7 (seven) working days.
- b. Respondent shall file a reply within 10 (ten) working days of receipt of the complaint along with a list of documents, names, and addresses of witnesses (if any).
- c. The Internal Committee shall investigate in detail the matter of the complaint.
- d. The Internal Committee shall have the right to call the person against whom the complaint is made or any other witnesses when necessary.
- e. The Internal Committee shall have the right to terminate the inquiry or give an ex-parte decision on the complaint, if the Respondent or Complainant remains absent for 3 (three) consecutive hearings, without sufficient cause, by giving a 15 (fifteen) days' notice to the Respondent or Complainant before passing an ex-parte decision.
- f. The Internal Committee must complete its investigation within 90 (ninety) days from the date of receipt of the complaint.
- g. The parties shall not be allowed to bring any legal practitioner to represent them in their case at any stage of the proceedings before the Internal Committee.

For conducting the inquiry, the quorum of the Internal Committee shall be of majority of the members including the presiding officer. The Internal Committee may, before initiating an inquiry, solely at the Aggrieved Person's request or with the Aggrieved Person's written consent, attempt to settle the matter through conciliation.

However, the Internal Committee shall ensure that:

- a. monetary settlement, including, without limitation, a promotion or pay rise to a party in the Organization will not be made as a basis of conciliation.
- b. where a settlement has been arrived, the settlement terms shall be signed by both parties and shall be provided with a copy of it.
- c. where a settlement arrives as mentioned hereinabove, no further inquiry shall be conducted by the Internal Committee.
- d. in the event the Aggrieved Person or the complaint informs the Respondent's non-compliance with the conciliation settlement conditions mutually agreed to between the Aggrieved Person and the Respondent, the Internal Committee may take such action as it deems fit per the Act, including filing a complaint against the Respondent with the relevant police authority.

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The Internal Committee may during such investigation exercise the power of a civil court, vested in it, in respect of:

- a. summoning and enforcing the attendance of any person and examining such person under oath;
- b. requiring discovery and production of documents;
- c. any other prescribed act required to investigate the complaint.

During such inquiry, upon written request by the Aggrieved Person, the Committee may at its discretion recommend:

- a. to transfer the Aggrieved Person or the Respondent to any other workplace, including any other Workplace;
- b. grant leave to the Aggrieved Person of up to 3 (three) months which is in addition to leave to which he/ she is otherwise entitled;
- c. grant such other relief to the Aggrieved Person as may be prescribed under the Act from time to time;
- d. restrain the Respondent from reporting on the work performance of the Aggrieved Person or writing his/ her confidential report and assign the same to another officer/ Individuals of the Organization.

ACTION

- a. The Committee shall on completion of the inquiry provide a report of its findings within 10 (ten) days from the date of completion of the inquiry and such report shall be made available to the concerned parties and the report shall be submitted to the senior management/ leadership of the Organization.
- b. Upon completion of an investigation, the Aggrieved Person and/ or the Complainant who made the complaint will separately be informed that the investigation has been completed.
- c. If the allegation against the Respondent has not been proved, the Committee may recommend that no action needs to be taken in the matter.
- d. If the Internal Committee concludes that the allegation against the Respondent has been proven, it shall recommend to
 - i. take action for Sexual Harassment as misconduct;
 - ii. tender written apology to the Complainant, including Aggrieved Person, issue warning, withholding of promotions/increments of the Respondent and/ or terminate the Respondent;
 - iii. deduct from the salary/wages of the Respondent or issue direction for payment; such sum as it may consider appropriate to be paid to the Aggrieved Person or their legal heirs, as it may determine;
 - iv. provide publishments (as detailed below);
 - v. such action will be implemented/ executed within 60 (sixty) days of the submission of the report by the Committee.
- e. Records shall be maintained for all complaints received and actioned. The Internal Committee will make an annual report detailing the number of complaints received,

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number of complaints disposed, pending complaints, and action taken by the Organization, and the same shall be submitted to the senior management of the Organization.

REMEDATION

Upon completion of the investigation, the Internal Committee will pronounce its verdict about the charges against the Respondent. A copy of the same will be sent to senior management for further action.

The Internal Committee, only through its official email ID, shall communicate in writing the findings of the Internal Committee to the Respondent and allow him/her to explain the conduct and why no action should be taken against him/her.

Upon receipt of the explanation, the Internal Committee only will decide the nature and quantum of punishment.

Where the Sexual Harassment is of a nature that amounts to a specific offense under the Indian Penal Code, 1860, the Organization will cooperate with the Aggrieved Person in initiating an appropriate action by the laws of the Republic of India.

Where the Internal Committee concludes that the allegation against the Respondent has not been proved, it shall recommend to the Organization that no action is required to be taken in the matter. Where the Internal Committee concludes that the allegation against Harasser has been proved, it shall recommend to the Organization; to take action for Sexual Harassment as per the Act and as per the actions as provided above and the punishments as per the service rules, if any or the Act. The Internal Committee shall ensure that its recommendations after the investigation are being implemented by the Organization.

PUNISHMENT FOR SEXUAL HARASSMENT

Any Individual found guilty of Sexual Harassment shall be liable to be punished as per the service rules or in the absence of such rules, as per the Act. These penalties may include

- a. Verbal and/or written reprimand;
- b. Warning;
- c. Deduction and/ or withholding of salary/ bonus/ increments/ incentives/ variable pay;
- d. Suspension without pay for an appropriate duration;
- e. Downward revision of designation and salary grade;
- f. Termination

Such action shall be calculated to be commensurate with the violation and as deemed appropriate under the circumstances.

Provided however, that in addition to all these penalties the Harasser shall be required to give a written apology to the victim, and upon his/her failure to do so the punishment may

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be enhanced at the discretion of the Internal Committee. Depending on the severity of Harasser's actions, the Internal Committee may, with the consent of the Aggrieved Person, assist the Aggrieved Person in filing a case under the Indian Penal Code, 1860 with the appropriate police and law enforcement authorities.

OPTION OF PROVIDING RELIEF/ COMPENSATION TO THE AGGRIEVED PERSON

In cases where the Internal Committee concludes that the allegations against the Harasser / Respondent have been proved the Committee may consider sympathetically the condition of the Aggrieved Person in terms of:

- a. Mental trauma, pain, suffering, and emotional distress caused to the Aggrieved Person;
- b. The loss of the career opportunity due to the incident of Sexual Harassment;
- c. Medical expenses incurred by the victim for physical or psychiatric treatment;
- d. The income and financial status of the Harasser/ Respondent; and grant relief as deemed fit within the broad ambit of the Act;
- e. Feasibility of such payment in a lump sum or in installments.

FALSE ACCUSATIONS

The complaint of Sexual Harassment made by any Individual shall be taken up with utmost seriousness by the Organization. However, there should be zero tolerance for any false accusations.

If the Internal Committee concludes that the allegation was made with malicious intent or the Aggrieved Person or any other person making the complaint on behalf of the Aggrieved Person produced false or forged or misleading documents to prove his/her case, the Internal Committee may recommend action to be taken against the person, including the Aggrieved Person, who has made the complaint, including termination of service. In such a case, malicious intent has to be established after an inquiry, before any action is recommended. A mere inability to substantiate a complaint or provide adequate proof would not attract action as provided herein. A similar recommendation for taking action would be made against any witness whom the Internal Committee concludes that he/she has given false evidence or produced forged or misleading documents.

It is to be noted that this statement is not intended to discourage Individuals from coming forward with any complaints. The Organization recognizes and expects that some claims may be difficult to prove or support or may not be found to raise to the level of seriousness deemed necessary to constitute Sexual Harassment. These types of complaints will not be false accusations.

AWARENESS

All Individuals, agents, customers, vendors, partners, and visitors shall have access to this Policy at any given point in time, and clarification related to this Policy shall be addressed

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by the Human Resources team of the Organization.

A brief shall be given to all existing Individuals regarding the features of this Policy immediately upon formulation of the Policy and to new Individuals of the Organization during their initial induction.

The Organization shall comply with all other details as set out under the Act to ensure that all Individuals are provided with a safe working environment at the Workplace.

The Organization shall display the notice showing the name of the Internal Committee members at its Workplace.

The Organization would take all requisite steps to ensure effective dissemination of this Policy through workshops and awareness programs.

The provisions of this Policy are in addition to and not in derogation of the provisions of any law including the Act, in force from time to time.

ANNEXURE 1**Internal Committee Members 2023-24**

Role	Name	Mail ID
Presiding Officer	Shefali Sharan	shefali.s@swaniti.org
Member	Gaurav Bhattacharya	gaurav.b@swaniti.org
Member	Ankita Salhotra	ankita.s@swaniti.org
Member	Javeria Shaikh	javeria.s@swaniti.org
External Member	Shaifaly Sangal	shaifaly.sangal@gmail.com

Address: 11/11 Sarva Priya Vihar, Hauz Khas, Delhi -110016

Email: uma.b@swaniti.org

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